



2026:AHC-LKO:46526-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 5879 of 2026

Ram Chandar @ Ram Chandar Pasi

.....Petitioner(s)

Versus

Executive Engineer Electricity Supply Division
4th Pratapgarh And 2 Others

.....Respondent(s)

Counsel for Petitioner(s) : Shiv Prakash Mishra, Ashish Kumar Shukla
Counsel for Respondent(s) : Amarjeet Singh Rakhra

Court No. - 3

HON'BLE SHEKHAR B. SARAF, J.

HON'BLE ABDHESH KUMAR CHAUDHARY, J.

1. Heard learned counsel for the petitioner as well as Shri Prakirat Singh, Advocate, holding brief of Shri Amarjeet Singh Rakhra, learned counsel for the respondents.

2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner has sought the following substantial relief :-

"(i) Issue a writ, order or direction in the nature of Certiorari thereby quashing the demand notice dated 25.05.2015 issued by concerned department (opposite party no.3), contained as Annexure No.1 to this writ petition, in the interest of justice.

(ii) Issue a writ, order or direction in the nature of mandamus thereby commanding and directing the respondent no.1 and 2 to decide his application /representation dated 25.08.2025 in the light of section 6.5 of U.P. Electricity Supply Code, 2005."

3. Upon perusal of the documents, it comes out that the petitioner had on earlier occasion approached The District Consumer Disputes Redressal Commission (DCDRC), Pratapgarh complaining certain deficiency in services. Apparently, the learned DCDRC did not find any merit and as such, vide an order dated June 25, 2025, while dismissing the complaint of the petitioner, granted opportunity to move an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 (hereinafter referred to as the 'Code of 2005'). Learned

counsel for the petitioner submits that the petitioner moved an application on August 25, 2025 pursuant to the liberty granted by the aforesaid DCDRC, however, the receipt of the said application is denied by learned counsel appearing on behalf of the respondents-authorities.

4. Be that as it may, we are of the view that this petition may be disposed of with an opportunity granted to the petitioner to move an appropriate application before the authority concerned under Clause 6.5 of the Code of 2005. If such an application is moved within two weeks, the authority concerned is directed to grant opportunity of hearing to the petitioner and thereafter pass a reasoned order within eight weeks from the date of filing of the said application.

5. With the above observation/direction, the writ petition stands **disposed of.**

July 14,
2026
MVS/-

(Abdhesh Kumar Chaudhary,J.) (Shekhar B. Saraf,J.)